

21STCP00295 21STCP00295

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-08-11

Motion: DEFENDANTS' MOTION TO DISMISS PLAINTIFFS' SECOND AMENDED COMPLAINT

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Case Number: 21STCP00295 Hearing Date: August 11, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

SIRY

INVESTMENTS, L.P.; MOHAMMED SIRY; SIRY BROTHERSPARTNERSHIP,

Plaintiffs,

vs.

SAEED FARKHONDEHPOUR, individually and as trustee of the

1993 FARKHONDEHPOUR FAMILY TRUST; 350 SOUTH LOS ANGELES ST. PARTNERSHIP,

L.P.; DOWNTOWN ACQUISITION GROUP, INC., INVESTMENT CONSULTANTS LLC and DOES

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Defendants.

AND RELATED CROSS-ACTION.

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CASE NO.: 21STCP00295

[TENTATIVE] ORDER RE:

DEFENDANTS' MOTION TO DISMISS

PLAINTIFFS' SECOND AMENDED COMPLAINT

Dept. 733

8:30 a.m.

August 11, 2026

I.

INTRODUCTION

This case involves the 350

South Los Angeles Partnership ("The Partnership"), a California Limited Liability Partnership that was created to invest in real estate in downtown Los Angeles. Plaintiffs Mohammed Siry ("Mohammed"), Siry Investments L.P. ("Siry Investments"), and Siry Brothers Partnership ("Siry Brothers") (together, "Plaintiffs"), allege that another limited partner of the Partnership, Saeed Farkhondehpour, individually and as trustee of the 1993 Farkhondehpour Family Trust ("Farkhondehpour"), and his agents, acting through the Partnership's general partner, have breached the Partnership's agreement and their fiduciary

duties by refusing to turn over management of the Partnership despite a vote to change the management and despite Farkhondehpour's express agreement to do so; and also by engaging in or facilitating a series of illicit financial transactions in addition to committing fraud and theft.

On February 1, 2021, Plaintiffs initiated this action. On June 17, 2021, Plaintiffs filed a first amended complaint ("FAC") against Defendants Farkhondehpour, Farkhondehpour Family Trust ("Farkhondehpour Trust"), The Partnership, Downtown Acquisition Group, Inc. ("DAG"), and Investment Consultants LLC ("Investment Consultants") (together, "Defendants").

On February 7, 2022, Farkhondehpour, Farkhondehpour Trust, and Investment Consultants filed a cross-complaint against Siry Investments, Siry Brothers, Mohammed, Morad Ben Neman ("Morad"), Simon Neman ("Simon"), Brian Neman ("Brian") ("the Nemans"), Jessica Kilburn ("Jessica") and Universal Bank ("Universal Bank"). On March 17, 2022, Cross-Complainants filed a first-amended cross complaint.

On May 4, 2022, the Nemans and Jessica filed a cross-complaint against Farkhondehpour, Investment Consultants, The Partnership and DAG.

On September 2, 2025, the Court reviewed Plaintiff's first amended complaint and Nemans' and Jessica's cross-complaint and found that the claims "asserted are derivative in nature; that is, they allege, in essence, harm to the corporate entity (here an LLC) as the result of Defendants' and Cross-Defendants' alleged acts. As such, they cannot survive as direct claims, even after the termination of the LLC. Nor can they be brought at the present time as derivative claims, given the termination of the LLC." The Court granted leave to amend "for the sole purpose of attempting to state viable direct claims." (See Sept. 2, 2025 Minute Order.)

On September 22, 2025, Plaintiffs filed a second amended complaint ("SAC"), alleging causes of action for (1) Breach of Written Contract, (2) Breach of Fiduciary Duty, (3) Fraud, (4) Statutory Claim for Improper Disposition of Property, (5) Declaratory Relief, (6) Specific Performance, and (7) Accounting.

On September 23, 2025, the Nemans and

Jessica filed a first amended cross-complaint ("FACC") against Farkhondehpour, Farkhondehpour Trust, The Partnership, DAG, and Investment Consultants, alleging causes of action for (1) Breach of Written Contract, (2) Breach of Fiduciary Duty, (3) Fraud – Concealment, (4) Statutory Claim for Improper Disposition of Property, (5) Declaratory Relief, and (6) Accounting.

On January 26, 2026, the Court heard Defendants/Cross-Defendants Farkhondehpour, Farkhondehpour Trust, The Partnership, DAG, and Investment Consultants' demurrer to the SAC. The Court sustained the demurrer in its entirety. The Court only granted leave to amend as to the seventh cause of action for Accounting. The demurrer was otherwise sustained without leave to amend.

On January 30, 2026, Plaintiffs filed to dismiss the seventh cause of action for Accounting without prejudice. The Court Clerk entered dismissal on February 3, 2026.

On March 13, 2026, Defendants/Cross-Defendants Farkhondehpour, Farkhondehpour Trust, The Partnership, DAG, and Investment Consultants filed the instant motion to dismiss Plaintiffs' SAC.

On July 30, 2026, Plaintiffs filed an opposition.

On August 4, 2026, Defendants/Cross-Defendants filed a reply.

II.

LEGAL STANDARD

"An action shall be brought to trial within five years after the action is commenced against the defendant." (Code Civ. Proc., § 583.310.)

If an action is not brought to trial within the required time period, it is subject to mandatory dismissal. (Code Civ. Proc., § 583.360.) The parties may extend the time by written stipulation or by oral agreement made in open court, if entered in the minutes or a transcript is made. (Code Civ. Proc., § 583.330.) The rules governing dismissal for delay in prosecution do not abrogate or otherwise affect the principles of waiver and estoppel. (Code Civ. Proc., § 583.140.)

Also, the court may dismiss a complaint as to a defendant when "after a demurrer to the complaint is sustained with leave to amend, the plaintiff fails to amend it

within the time allowed by the court and either party moves for dismissal.”
(Code Civ. Proc., § 581(f)(2).)

III.

DISCUSSION

Defendants/Cross-Defendants

move to dismiss with prejudice Plaintiffs’ SAC pursuant to Code of Civil Procedure sections 583.310, 583.360, and 581, on the grounds that Plaintiffs failed to bring this case to trial within five years of commencing their action, and that there is no remaining cause of action under the SAC because the Court sustained demurrer without leave to amend as to all causes of action except for the accounting, which Plaintiffs dismissed.

First, Plaintiffs

do not oppose the Court dismissing the SAC pursuant to section 583.360, the five-year mandatory dismissal statute. The five-year period “run[s] from the date of the originally filed complaint.” (*Davalos v. Cnty. of Los Angeles* (1983) 142 Cal.App.3d 57, 63.) The period commenced in this matter on February 1, 2021 when Plaintiffs filed their original complaint. (Anand Decl., ¶ 3, Ex. 1.) Plaintiffs admitted through their attorney on January 16 and 30, 2026, that their deadline to bring this action to trial would run on February 2, 2026. (*Id.* ¶ 9.) Defendants declined Plaintiffs’ request to extend the deadline. (*Id.* ¶ 8, Ex. 4.) Plaintiffs thus did not bring this case to trial within five years of filing their original complaint. Dismissal pursuant to section 583.310 is proper. (See Code Civ. Proc., § 581(g) [“The court may dismiss without prejudice the complaint in whole, or as to that defendant, when dismissal is made under the applicable provisions of Chapter 1.5 (commencing with Section 583.110)”] (emphasis added).)

However, Defendants/Cross-Defendants

also seek dismissal under section 581(f)(2). Unlike dismissal under section 581.310, this type of dismissal operates with prejudice, and is considered an adjudication on the merits. (*Roybal v. Univ. Ford* (1989) 207 Cal.App.3d 1080, 1085–86 [“[A] dismissal with prejudice by plaintiff of its action is a bar to a subsequent action on the same cause; otherwise there would be no meaning to the ‘with prejudice’ feature. ‘A dismissal with prejudice terminates the action and the rights of the parties are affected by it. It is a final judgment in favor of defendants....’ [Citation.]”].)

Defendants/Cross-Defendants argue that dismissal is warranted under section 581(f)(2) because the Court sustained demurrer without leave to amend the first six causes of action in the SAC and Plaintiffs dismissed the seventh cause of action for an accounting instead of amending. (Anand Decl., ¶¶ 7, 9-10, Ex. 5.) Defendants/Cross-Defendants contend that since no cause of action in the SAC is pending after Plaintiffs dismissed their one remaining claim, dismissal of the SAC is the next step to enter judgment.

Here, on January 26, 2026, the Court sustained Defendants/Cross-Defendants' demurrer to the SAC. The Court sustained the demurrer without leave to amend as to all causes of action, except the Accounting cause of action. The Court granted thirty (30) days leave to amend as to the Accounting cause of action. (See Jan. 26, 2026 Order.) Instead of amending this cause of action, Plaintiffs elected to dismiss the claim without prejudice on January 30, 2026, as it was their right to do so. (Code Civ. Proc., § 581(c) ["A plaintiff may dismiss his or her complaint, or any cause of action asserted in it, in its entirety, or as to any defendant or defendants, with or without prejudice prior to the actual commencement of trial."].)

Defendants/Cross-Defendants' reliance on *Wells v. Marina City Props., Inc.* (1981) 29 Cal.3d 781 is misplaced. There, the Court heard a general demurrer on August 4, which was sustained with thirty (30) days leave to amend. (*Id.* at p. 783.) The time to amend was extended to September 26. (*Ibid.*) The plaintiff virtually went radio silent. (*Ibid.*) On October 5, past the time allowed for further amendment, the defendants moved for dismissal with prejudice pursuant to the predecessor of Code of Civil Procedure section 581(f)(2). (*Ibid.*) The next day, the plaintiff filed a request for dismissal of his case without prejudice. (*Ibid.*) The Court disapproved of this action and concluded "that once a general demurrer is sustained with leave to amend and plaintiff does not so amend within the time authorized by the court or otherwise extended by stipulation or appropriate order, he can no longer voluntarily dismiss his action pursuant to section 581, subdivision 1, even if the trial court has yet to enter a judgment of dismissal on the sustained demurrer." (*Id.* at p. 789.)

The circumstances are different here. Plaintiffs elected to dismiss the Accounting cause of

action within the time allowed for amendment, only four days after the Court sustained Defendants/Cross-Defendants' demurrer to the SAC. (Id. at p. 789 ["we note that such right of voluntary dismissal, which is not barred until expiration of plaintiff's time to amend after the sustaining of the demurrer, would also not be impaired prior to a decision sustaining the demurrer."] (emphasis added).)

The situation is instead similar to *Parsons v. Umansky* (1994) 28 Cal.App.4th 867. There, the trial court sustained a general demurrer to the entire complaint, allowing ten (10) days leave to amend. (Id. at p. 869.) The plaintiff elected to dismiss his complaint without prejudice. (Ibid.) Learning of the dismissal order, the defendants moved the court to enter an order dismissing the action with prejudice pursuant to section 581(f)(2). (Ibid.) The trial court granted the defendants' request and later denied plaintiff's motion to vacate that order. (Ibid.) The *Parsons* court held this to be erroneous. (Ibid.) The Court held that a "plaintiff may decline to amend a complaint and instead obtain a dismissal without prejudice during the time granted leave to amend following the sustaining of a demurrer." (Ibid.)

Because Plaintiffs

here elected to dismiss the seventh cause of action for Accounting within the time the Court allowed for amendment, relief under section 581(f)(2) is unavailable and the Court otherwise does not exercise its discretion in affording section 581(f)(2) relief. *Cano v. Glover* (2006) 143 Cal.App.4th 326, 329 ["The phrase 'may dismiss' [in section 581(f)(2)] means discretionary dismissal."].)

However, given that the Court sustained Defendants/Cross-Defendants' demurrer without leave to amend as to the SAC's first through sixth causes of action, these claims are dismissed with prejudice. (*Metabyte, Inc. v. Technicolor S.A.* (2023) 94 Cal.App.5th 265, 275 ["a dismissal without prejudice is not available if the demurrer is sustained without leave to amend[.]"].)

IV.

CONCLUSION

Based on the foregoing, Defendants'/Cross-Defendants' motion to dismiss is GRANTED in part DENIED in part. The Court

orders Defendants/Cross-Defendants to submit a proposed form of judgment consistent with this opinion.

Dated this 11th
day of August 2026

Hon. Gary D.
Roberts

Judge of the
Superior Court